

23NWCV01102 23NWCV01102

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23NWCV01102 Hearing Date: July 17, 2026 Dept: P

NIAL COLEMAN v. MAURO CRUZ GOMEZ, ET AL.

CASE NO.: 23NWCV01102

HEARING: 07/17/2026 @ 9:30 AM

#15

TENTATIVE ORDER

Counsel Anthony

Werbin, Esq.'s motion to be relieved as counsel for Plaintiff Nial Coleman is GRANTED.

This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.

Moving party to give notice.

Counsel Anthony Werbin, Esq. (Counsel) moves to be relieved as counsel for Plaintiff Nial Coleman (Plaintiff).

Background

On April 11, 2023, Plaintiff filed this personal injury action against Defendants Mauro Cruz Gomez; Anel Gomez Hernandez; Tyra Roberta Toler; and Does 1 to 50 arising out of injuries Plaintiff sustained in a motor

vehicle collision on April 27, 2021, near Alameda Str. & Florence Ave., Los Angeles, CA 90255. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

Legal Standard

“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves
to be relieved as counsel for Plaintiff.

Here, in
compliance with California Rules of Court, rule 3.1362, Counsel submits a notice of motion and motion on Form MC-051 directed to Plaintiff. Counsel also submits a declaration on Form MC-052 demonstrating good cause to be relieved as counsel for Plaintiff. Specifically, Counsel states that despite numerous efforts, Counsel has been unable to establish regular communication with Plaintiff resulting in a breakdown of the attorney-client relationship. Counsel

provides a proposed order on Form MC-053 and proof of service of each document to the parties in this action. Therefore, the Court finds that Counsel has fully complied with the requirements under California Rules of Court, rule 3.1362.

Accordingly,

Counsel's motion to be relieved as counsel for Plaintiff is GRANTED. This Order will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.